

Exchange, Sales, Etc., of Inam Lands Rules

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State of Tamilnadu- Act

Exchange, Sales, Etc., of Inam Lands Rules

TAMILNADU

India

Exchange, Sales, Etc., of Inam Lands Rules

Act 1033 of 1960

Published on 5 February 1960

Commenced on 5 February 1960

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Exchange, Sales, Etc., of Inam Lands Rules

Published vide Notification No. G. O. Ms. No. 662, Revenue, dated 5th February, 1960 - SRO No. A-1033 of 1960

Published in Part I of the Fort St. George Gazette, dated 17th February 1960.

G. O. Ms. No. 662, Revenue, dated 5th February, 1960 - SRO No. A-1033 of 1960. - In exercise of the powers conferred by sub-section (1) of section 116 read with sub-section (1) of section 41 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959), the Governor of Tamil Nadu hereby makes the following rules, namely:-

1.

These rules may be called the Exchange, Sales, etc., of Inam Lands Rules.

2.

Notice of the particulars relating to the proposal for the exchange, sale or mortgage or lease for a term exceeding five

years, of the whole or any portion of any inam granted for the support or maintenance of a religious institution or for the performance of a charity or service connected therewith or any other religious charity and made, confirmed or recognised by the Government shall be published,-

(i)

in the language of the locality in a daily newspaper in circulation in the locality where the math or temple concerned is situate:

Provided that where the value of the property involved in the proposed transaction is less than Rs. 300, the requirement of publication of the notice in a daily newspaper may be dispensed with at the discretion of the Government, and

(ii)

by affixture-

(a)

on the notice board or the front door of the math or temple concerned;

(b)

on the notice board of the office of the municipal council including the Corporation of [Chennai]

[Substituted for the word 'Madras' by 'the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or village chavadi in the village or villages in which the property proposed to be dealt with is situate, and if there is no village chavadi in a conspicuous place in the said village, or villages and on the notice board of the Panchayat; and

(c)

on the notice board of the offices of the Commissioner and of the Assistant Commissioner having jurisdiction over the area in which the math or temple concerned is situate.

(iii)

by beat of tom tom in a busy central place in the locality in which the property is situate.

3.

When the proposal relates to an inam granted for service in a religious institution and is made by an office-holder or servant of the institution, notice shall be sent to the trustee of the institution by registered post, acknowledgement due. Notice shall also be given to the person other than the trustee, if he is actually in possession of the property.

4.

The notice shall invite objections and suggestions with respect to the proposals and fix the time within which they shall be submitted. They shall be considered after such inquiry as may be necessary.

5.

While according sanction, the Government may impose such conditions and give such directions as they may deem necessary regarding the utilisation of the amount raised by the transaction, the investment thereof, and in the case of a mortgage, regarding the discharge of the same within a reasonable period and other relevant factors.

6.

After the final orders of the Government on a proposal, another notice shall be given before actually executing the decision. [A copy of the order of the Government sanctioning an exchange, sale or mortgage or lease for a period exceeding five years shall, in addition to being communicated to the trustee and persons having interest, if any, who appeared in the proceedings, be published by affixture-

(a)

on the notice board of the office of the Commissioner and the Assistant Commissioner having jurisdiction over the area in which the religious institution concerned is situate;

(b)

on the notice board or the front door of the religious institution concerned;

(c)

on the notice board of the office of the municipal council or the Corporation of [Chennai] or the village chavadi and, if there is no village chavadi, in some other public place in the village in which the religious institution concerned is situate and on the notice board of the Panchayat Board;

(d)

in a newspaper of the language of the locality where the religious institution is situate:

Provided that where the value of the property involved is less than Rs. 300, the requirement of publication may be dispensed with at the discretion of the Government; and

(e)

where the religious institution is in one village, and the property to be exchanged, sold or mortgaged or leased for a period exceeding five years is in another village, a copy of the order of the Government shall be affixed on the notice board of the village chavadi of the village in which the property is situate and, if there is no village chavadi, in some other public place in the village in question].

[Added by Notification No. S.R.O. No. A-235 of 1963 and published on the 20th March 1963.]

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